Digital Policy Alert

DPA Digital Digest: Algeria

2025 Edition

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DPA Digital Digest: Algeria

A close-up of Algeria's regulatory approach to data governance, content moderation, competition, artificial intelligence, and more.

Algeria's digital economy is growing. In January 2024, Algeria had 33.49 million internet users, representing a 72.9% penetration rate. To support further progress in digital transformation, the government recently updated the National Digital Strategy, prioritising infrastructure development and cybersecurity in over 500 digital projects planned for 2025–2026. On the international stage, Algeria is working with the German Agency for International Cooperation on the development of Digital Innovation Hubs and recently signed a cooperation memorandum with Huawei. Additionally, Algeria is engaging in digital trade through initiatives within the African Union, including the African Continental Free Trade Area and the Smart Africa Alliance.

But what do Algeria's domestic **digital policies** stand for? Our DPA Digital Digest provides a succinct overview of the latest policy and enforcement developments in major policy areas and Algeria-specific points of emphasis.

- **Data governance**: Algeria implemented the Law Relating to the Protection of Individuals in the Processing of Personal Data and maintains several data localisation requirements regarding electronic commerce, cloud services, and media content.
- **Content moderation**: Algeria implemented the laws governing audiovisual and online content and established local content quotas.
- **Competition** policy: Algeria applied the Competition Ordinance to digital markets and empowered the Post and Electronic Communications Regulatory Authority to designate and regulate powerful operators in telecommunications markets.
- **Artificial Intelligence**: Algeria established an AI Council, issued the AI strategy with emphasis on research and innovation, and endorsed international AI governance initiatives.
- Algeria's **points of emphasis** include the taxation of the digital economy as well as authorisation and licensing requirements.

Jump directly to the section that interests you most:

→ Data governance

→ Content moderation

→ Competition

→ Artificial Intelligence

→Points of emphasis: Taxation of the digital economy and authorisation and licensing requirements

Data governance

Policy developments

In August 2023, Algeria implemented the Law Relating to the Protection of Individuals in the Processing of Personal Data. The Law grants individuals the right to access, rectify, and object to the processing of their personal data. Data controllers and processors must ensure that processing is lawful, fair, and transparent, and implement appropriate security measures to prevent unauthorised access, alteration, or destruction of data. The Law also requires data controllers to notify the National Data Protection Authority (ANPDP) before processing personal data. Prior authorisation is required when data processing is likely to present a clear risk to the fundamental rights and freedoms of individuals.

Algeria's cybersecurity framework comprises several sectoral frameworks.

- In January 2021, Decree No. 20-05 established a requirement for information systems to appoint a dedicated security officer. It also created the National Council for Information Systems Security to develop strategies and approve policies, and the Agency for Information Systems Security to implement and enforce them.
- The 2018 Law No. 18-04 requires electronic communications providers to ensure network security, safeguard data confidentiality, and prevent unauthorised interception of communications.
- The 2009 Law No. 09-04 requires providers of information and communication technologies to implement technical measures to safeguard stored data.

On the international level, Algeria participates in initiatives related to data governance.

- In October 2024, the ANPDP signed a memorandum with the Personal Data Protection Authority of Mauritius to enhance cooperation on data protection rules.
- In February 2024, the African Union (of which Algeria is a member) adopted the Digital Trade Protocol to the African Continental Free Trade Area, which includes measures on personal data protection and cross-border data transfers.
- In February 2022, the African Union (of which Algeria is a member) adopted the Data Policy Framework, which includes provisions on data protection, cybersecurity, and cross-border data transfers.

Data localisation/transfer developments

Algeria does not generally require data localisation but maintains several specific obligations.

- In December 2024, the Law on Audiovisual Activity entered into force, requiring online audiovisual services to be hosted exclusively on servers physically located in the country and use the national ".dz" domain.
- In June 2024, the Law on written and electronic press established the obligation for electronic press providers to use websites hosted exclusively on physical infrastructure in Algeria with a ".dz" domain extension.
- In November 2018, the Law on electronic commerce introduced the obligation for businesses engaged in e-commerce to host their websites with a local ".dz" domain and register with the national trade registry.

- In November 2017, the Regulatory Authority of Post and Electronic Communications issued a rule requiring operators of public cloud computing services to establish their infrastructure on Algerian territory and to host and store their data locally.

Regarding data transfers, the Law Relating to the Protection of Individuals in the Processing of Personal Data sets several mechanisms.

- Data may be transferred to foreign states that provide an adequate level of protection and with prior authorisation from the ANPDP. To date, the ANPDP has not issued the list of such jurisdictions or the declarations for obtaining authorisations for the transfer.
- Transfers to countries not listed as providing adequate protection are permitted under specific conditions, including with the data subject's explicit consent, if necessary to safeguard the data subject's life or the public interest, if in the execution of international agreements involving Algeria, or with the explicit authorisation of the ANPDP.
- Transfers that might endanger public security or the vital interests of the State are expressly prohibited.

Guidelines and enforcement developments

The ANPDP oversees compliance with data protection regulations and is responsible for issuing guidelines, conducting audits, and investigating potential violations of the data protection rules. Currently, there are no public, official sources on guidelines or enforcement action by the ANPDP.

Content moderation

Policy developments

Algeria's content moderation framework comprises several laws:

- In December 2024, Algeria implemented the Law on the Audiovisual Activity. The Law prohibits audiovisual and online communication services from broadcasting content that promotes violence, terrorism, racial discrimination, or false information. The Law also extends the Audiovisual Regulatory Authority's authority to content diffused on digital platforms. Finally, the Law establishes a 60% local content quota.
- In June 2024, Algeria implemented the Law on written and electronic press, which grants the Written and Electronic Press Regulatory Authority the power to suspend publications or websites for up to 30 days if they violate legal obligations. These violations include publishing content that undermines national defence and security, territorial integrity, public order, the Muslim religion, or public morality. The Law also requires electronic press outlets to implement measures to notify competent authorities and remove and block access to such material upon identification.
- The 2009 Law on the prevention and fight against crimes related to information and communication technologies requires internet service providers to remove or block access to unlawful content upon discovery, particularly material violating public order or morality. Providers must deploy technical measures to restrict access to prohibited content and notify subscribers of such restrictions. The Law also includes copyright protection to prevent unauthorised use of protected digital content.

At the international level, Algeria participates in several initiatives regarding online content:

- In February 2024, Algeria joined other African governments in adopting the Association of African Election Authorities' Digital and Social Media Guidelines, which establish standards for the responsible use of digital platforms during electoral processes.
- In June 2023, Algeria was among 71 governments that signed the International Statement to Remove Online Child Sexual Abuse Materials, committing to proactive measures against child exploitation online.
- In May 2024, as a member of the African Union, Algeria adopted the Child Online Safety and Empowerment Policy which provides a framework for protecting children online while promoting digital literacy and skills.

Guidelines and enforcement developments

Algeria established several regulatory authorities to enforce content moderation rules across different sectors:

- In November 2021,the Decree No. 21-439 reorganised the National Authority for the Prevention and Combating of Crimes Related to Information and Communication Technologies. The Authority has the power to conduct preventive surveillance of electronic communications under judicial authority to detect terrorist acts, subversive activities, or threats to state security.
- In June 2016, Law No. 12-05 established the Audiovisual Regulatory Authority responsible for monitoring compliance with content standards in the audiovisual sector. The Law also established the Written and Electronic Press Regulatory Authority, which oversees content standards for print and online media.

Currently, there are no public, official sources on guidelines or enforcement action related to Algeria's content moderation framework.

Competition

Policy developments

Algeria has not adopted specific rules regarding competition in digital markets and instead applies the 2003 Ordinance on Competition. The Ordinance prohibits abuses of dominance such as predatory pricing, territorial restrictions, or discriminatory treatment of trading partners. Additionally, it bans anti-competitive agreements that restrict market access, limit production, or fix prices.

Two amendment laws expanded the Ordinance on Competition's obligations.

- In August 2010, Law No. 10-05 introduced measures for price regulation during market disruptions, requiring transparent pricing structures and non-discrimination to prevent unfair treatment of commercial partners.
- In July 2008, Law No. 08-12 expanded provisions related to anti-competitive agreements and merger control. Entities are required to notify and obtain approval from the Competition Council for mergers that are "likely to affect competition".

In May 2018, Algeria also implemented the Law on the general rules relating to post and electronic communications. The Law prohibits anti-competitive practices, including abuse of dominance,

refusal to share essential facilities, and discriminatory behaviour by operators. Additionally, the Law empowers the Regulatory Authority of Post and Electronic Communications to designate "powerful operators" and impose corrective measures to address non-competitive behaviour.

Guidelines and enforcement developments

The Competition Council enforces the Ordinance on Competition and has the power to to investigate violations, issue rules and guidances. In the electronic communications sector, competition enforcement is conducted by the Regulatory Authority of Post and Electronic Communications. Currently, there are no publicly available official sources on enforcement action or guidelines specifically addressing digital competition.

Artificial Intelligence

Policy developments

Algeria has not yet adopted laws or regulations specifically governing the development and use of Artificial Intelligence (AI).

In June 2023, the Ministry of Higher Education and Scientific Research and the Ministry of Knowledge Economy jointly established the AI Council. The Council provides guidance on AI development and governance and is tasked with aligning AI innovation with national priorities and ethical standards.

In December 2024, the AI Council announced the AI strategy, which aims to boost technological growth and global competitiveness through research, innovation, and infrastructure. The strategy includes plans for creating a national AI fund, enhancing data systems, and attracting both domestic and international investment. It also proposes expanding the National Data Protection Authority's role in overseeing data protection and enforcing AI regulations, alongside developing a legal framework to govern AI and extending current data privacy regulations to address AI-specific concerns.

At the international level, Algeria endorsed several international initiatives on AI governance.

- The African Union, of which Algeria is a member, adopted the Continental Artificial Intelligence Strategy for digital transformation and the AI Governance Framework, as well as a cooperation agreement on AI research and development with China.
- In February 2024, the Digital Trade Protocol to the African Continental Free Trade Area was adopted. It requires parties to facilitate the adoption and regulation of emerging and advanced technologies, aligning with public policy and security interests, and to develop governance frameworks ensuring ethical, trusted, safe, and responsible use.

Guidelines and enforcement developments

There are currently no public, official sources on enforcement action or guidelines related to Algeria's artificial intelligence framework.

Further points of emphasis

Taxation of the digital economy

Algeria has recently focused on the indirect taxation of the digital economy:

- In January 2020, Algeria expanded the scope of the Value Added Tax (VAT) to cover electronic sales transactions. The VAT applies to foreign companies providing digital services such as e-publishing, streaming services, online games, and software. Currently, the standard rate of 19% applies, although these services were subject to a reduced VAT rate of 9% until December 2021. In addition, Algeria introduced a 30% reduction in withholding tax on royalties paid for software usage rights.
- In December 2023, Algeria extended VAT exemptions to certain services, including fixed internet access, data centre hosting, and website development and maintenance. These exemptions, originally due to expire in December 2020, were extended until December 2026.

Authorisation and licensing requirements

Algeria recently updated its authorisation and licensing frameworks for both audiovisual services and telecommunications.

In December 2023, Algeria amended the 2014 Law on Audiovisual Activity. The amendment mandates prior authorisation from the Minister of Communication for providing audiovisual services, as well as rules on fair advertising and copyright. The amendment also updated the ownership rules restricting audiovisual service operations to Algerian legal entities, with 100% of the capital held by Algerian natural or legal persons.

Regarding the telecommunications sector, Algeria implemented several regulatory updates to the 2018 Law on post and electronic communications.

- In January 2021, Decree No. 21-44 expanded the licensing framework to require operating licenses for entities providing electronic communication networks and services. Providers of internet access, interactive communications with additional pricing such as audiotex services, cloud data hosting and storage must obtain a general authorisation from the Regulatory Authority for Post and Electronic Communications.
- The conditions for the authorisation of electronic communications services were further detailed in July 2022, through Decree No. 22-39, establishing seven-year renewable, non-transferable authorisations and requiring regulatory approval for significant shareholder changes.
- The framework was further updated in March 2023 through Decree No. 23-123, which amended provisions related to business registration requirements.

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